

HB 3003 -- FIRE SUPPRESSION AND SAFETY

SPONSOR: Steinmeyer

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Local Government by a vote of 15 to 1. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 10 to 0.

This bill establishes the "Fire Life-Safety Damper Inspection Verification Act".

Any political subdivision that by code or standard requires fire life-safety dampers must require that such fire life-safety dampers are:

- (1) Tested for compliance within 12 months of installation; and
- (2) Periodically tested no less than once every four years thereafter.

These provisions apply to every fire life-safety damper required by a code or standard of any political subdivision that requires a fire life-safety damper other than those in one- and two-family dwellings or townhouses three stories or fewer above grade plane.

All tests and inspections must comply with certain standards, as described in the bill. Those performing the tests and inspections must have certain qualifications, as described in the bill. If the smoke or fire dampers pass the applicable tests and inspections, the qualified person performing the test or inspection will execute a compliance certification, as described in the bill. The building owner must maintain a copy of the compliance certification and make it available for inspection upon request.

In the event a test or inspection reveals deficiencies, a deficiency report identifying the nature of said deficiencies must be prepared, as described in the bill. The building owner must take necessary steps, detailed in the bill, to correct the deficiencies within 30 days. A notice of verification of the testing and inspection must be posted in the outside lobby window of the building for clear public display. The requirements for the notice are provided in the bill.

Failure to comply with these provisions will constitute a violation and subject the building owner to civil penalties, as described in the bill.

PROPONENTS: Supporters say that dampers can only be effective if installed and maintained properly. Mechanical components can easily become compromised for a variety of reasons that would not be obvious to any person who hadn't received the proper training. The requirements in the bill aren't being created anew, but already exist in widely used fire codes. The proper operation of the fire damper system will help people get out of a burning building and reduce the risk to first responders.

Testifying in person for the bill were Representative Steinmeyer; SMACNA; Andy Phelps, Barnes & Dodge, Inc; Benjamin Brooks; Patrick Dujakovich; Robert Grossmann, Murray Company; and Ryan Corrigan, Lyon Sheet Metal.

OPPONENTS: Those who oppose the bill say that the State should not be mandating international certifications for anything, only U.S. laws and certifications. This bill will place a cost burden on private businesses and property owners. The bill isn't business friendly. This is not good for taxpayers, just for those groups that make money off of inspections.

Testifying in person against the bill were ArmorVine.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.